

PART II. bodies as carry on undertakings under statutory powers
—*cont.* otherwise than for profit.

PART III.

GENERAL.

Provisions
as to
manner of
making
and fees on
applica-
tions.

5.—(1) The Treasury, so far as relates to applications for guarantees or grants under Part I of this Act, and the Minister of Labour, so far as relates to applications for grants under Part II of this Act, may make regulations prescribing the manner in which such applications are to be made.

(2) For the purpose of meeting the costs and expenses incurred by the Treasury in administering Part I. of this Act, there shall be charged in connection with applications for and the giving of guarantees under the said Part, and other matters arising thereunder, such fees as the Treasury may from time to time prescribe.

Duration of
powers.

6. The power of giving guarantees and of making grants under this Act shall be exercisable only within a period of three years from the thirty-first day of August, nineteen hundred and twenty-nine.

Expenses of
committees.

7. Any expenses incurred respectively by the Treasury and the Minister of Labour in connection with the committees appointed under this Act shall, so far as not otherwise provided for, be defrayed out of moneys provided by Parliament.

Short title.

8. This Act may be cited as the Development (Loan Guarantees and Grants) Act, 1929.

CHAPTER 8.

An Act to make further provision with respect to the construction of certain references to rateable value in enactments relating to the drainage and protection of land.

[26th July 1929.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present

Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Any provision of any enactment relating to the drainage or protection of land against flooding which requires any matter, other than the amount of any drainage rate, to be determined by reference to the value of property as ascertained for the purposes of general rates, or of drainage rates, shall, as from the first day of October, nineteen hundred and twenty-nine, have effect as if it required that matter to be determined by reference to such value as is hereinafter mentioned, that is to say :—

Amendment of certain provisions in land drainage enactments as to the ascertainment of values and the persons entitled to vote at elections of drainage authorities.

- (i) In the case of property assessed for income tax purposes under Schedule A. of the Income Tax Act, 1918, as amended by any subsequent enactment, by reference to gross annual value for income tax purposes, any necessary apportionment of that value being made by a court of summary jurisdiction; and
- (ii) In the case of property not so assessed, by reference to gross annual value as determined by a court of summary jurisdiction.

8 & 9 Geo. 5.
c. 40.

(2) Any provision of any enactment relating to the drainage or protection of land against flooding which provides that the electors at any election of members of a drainage authority shall be the owners and occupiers of lands within the drainage area or district, and that for the purposes of any such election the owner or occupier of any land shall be deemed to be the person shown in the rate book of the parish or rating area as being the owner or occupier of that land on a specified date, shall as from the first day of October, nineteen hundred and twenty-nine, have effect as if it provided that the persons entitled to vote at any such election as being owners and occupiers of lands shall, instead of being ascertained by reference to the said rate book, be ascertained by reference to a list of owners and occupiers liable to pay drainage rates to be kept by the drainage authority (either in their drainage-rate book or, if they so elect, as a separate list), or in the case of any dispute as to the correctness of any such list, be ascertained by a court of summary jurisdiction, and as if it provided further that the date by reference to which the persons entitled to vote at any such election as the owners and

occupiers of lands are to be ascertained shall be such date, not less than two nor more than four months before the date of the election, as the drainage authority may fix for that purpose.

(3) In this Act—

“Enactment” includes any public, general, local or private Act and any order or award made under any Act;

“Drainage rate” means any rate which is assessed under any commission of sewers or in respect of any drainage, wall, embankment or other work for the benefit of land; and

“Gross annual value for income tax purposes” means the annual value for the time being in force for the purposes of income tax under Schedule A. of the Income Tax Act, 1918, as amended by any subsequent enactment.

Short title
and extent.

2.—(1) This Act may be cited as the Land Drainage Act, 1929.

(2) This Act shall not extend to Scotland or Northern Ireland.

CHAPTER 9.

An Act to indemnify certain persons from any penal consequences which they may have incurred by sitting and voting as members of the Commons House of Parliament while holding the office of Under Secretary of State, and to render valid the election of such persons.

[6th December 1929.]

21 & 22 Vict.
c. 106.

7 & 8 Geo. 5.
c. 51.

16 & 17 Geo.
5. c. 18.

WHEREAS by section four of the Government of India Act, 1858, as amended by section eleven of the Air Force (Constitution) Act, 1917, and section three of the Secretaries of State Act, 1926, it is provided that any six of His Majesty's Principal Secretaries of State